

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2611
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 8-529, Arizona Revised Statutes, is amended to
3 read:

4 8-529. Children in foster care and kinship foster care:
5 rights

6 A. A child WHO IS in foster care ~~and~~ OR kinship foster care has the
7 following rights:

8 1. To appropriate care and treatment in the least restrictive
9 setting available that can meet the child's needs according to the best
10 judgment of the foster parent.

11 2. To live in a safe, healthy and comfortable placement where the
12 child can receive reasonable protection from harm and appropriate privacy
13 for personal needs and where the child is treated with respect.

14 3. To be placed with a relative when such placement is in the best
15 interest of the child.

16 4. To be placed with or in close proximity to the child's siblings
17 when possible and to visit and have contact with siblings and family
18 members when ~~it~~ THE PLACEMENT, VISITATION OR CONTACT is in the best
19 interest of the child.

20 5. To know why the child is in foster care and what will happen to
21 the child and to the child's family, including siblings, and case plans.

22 6. Whenever possible, to be placed with a foster family that can
23 accommodate the child's communication needs.

24 7. To be disciplined in a manner that is appropriate to the child's
25 level of maturity and not be subjected to physical discipline methods.

26 8. To attend community, school, extracurricular and religious
27 services and activities of the child's choice to the extent that it is
28 appropriate for the child, as planned and discussed with the child's

1 placement worker and caseworker and based on caregiver ability if
2 transportation is available through a responsible party.

3 9. To go to school and receive an education that fits the child's
4 age and individual needs. If remaining in the child's current school is
5 not in the child's best interest, the child has the right to be enrolled
6 in the least restrictive school available.

7 10. To training in personal care, hygiene and grooming.

8 11. To clothing that fits comfortably and is adequate to protect the
9 child against natural elements such as rain, snow, wind, cold and sun.

10 12. To have personal possessions at home and to acquire additional
11 possessions within reasonable limits, as planned and discussed with the
12 child's foster parent, placement worker and caseworker, and based on
13 caregiver ability.

14 13. To personal space, preferably in the child's foster home bedroom
15 for storing clothing and belongings.

16 14. To healthy foods in healthy portions that are appropriate for
17 the child's age.

18 15. To comply with any approved visitation plan, and to have any
19 restrictions explained to the child in a manner and level of details
20 deemed age appropriate by the foster parent in agreement with the
21 caseworker and documented in the child's record.

22 16. If the child is six years of age or older, to receive contact
23 information for the child's caseworker, attorney or advocate and to speak
24 with them in private if necessary.

25 17. To be represented by an attorney in all proceedings initiated
26 pursuant to this title.

27 18. To participate in age appropriate child's service planning and
28 permanency planning meetings and to be given a copy or summary of each
29 service plan and service plan review. The child may request someone to
30 participate on the child's behalf or to support the child in this
31 participation.

32 19. To attend the child's court hearing and speak to the judge.

33 20. To have the child's records and personal information kept
34 private and discussed only when it is about the child's care, except **THAT**
35 the foster parent shall have full access to the records to determine **if**
36 **WHETHER** the child will be successful in the home. During the foster
37 placement, if the foster parent requests to view the record on
38 experiencing problems with the child's adjustment, the full record shall
39 be made available for viewing by the foster parent.

40 21. To receive **IMMEDIATE AND UNBIASED** medical, dental, vision and
41 mental health services and to be informed about diagnoses and treatment
42 options as is developmentally appropriate.

43 22. To be free of unnecessary or excessive medication.

44 23. To receive emotional, mental health or chemical dependency
45 treatment separately from adults who are receiving services, as planned
46 and discussed with the child's placement worker and caseworker, as is
47 financially reasonable for the foster parent.

1 24. To report a violation of personal rights specified in this
2 section without fear of punishment, interference, coercion or retaliation,
3 except that an appropriate level of punishment may be applied if the child
4 is proven to have maliciously or wrongfully accused the foster parent.

5 25. To be informed in writing of the name, address, telephone number
6 and purpose of the Arizona protection and advocacy system for disability
7 assistance.

8 26. TO VOLUNTARILY PARTICIPATE IN ENRICHMENT ACTIVITIES.

9 27. TO BE FREE OF BULLYING OR DISCRIMINATION.

10 ~~26.~~ 28. To understand and have a copy of the rights listed in this
11 section.

12 B. A child WHO IS in foster care or kinship foster care AND who is
13 at least fourteen years of age has the following rights:

14 1. To attend preparation for adult living classes and activities as
15 appropriate to the child's case plan, as is financially reasonable for the
16 foster parent.

17 2. To a transition plan that includes career planning and
18 assistance with enrolling in an educational or vocational job training
19 program.

20 3. To be informed of educational opportunities, including
21 information regarding assistance and funding for postsecondary and
22 vocational education.

23 4. To assistance in obtaining an independent residency when the
24 child is too old to remain in foster care from the child's caseworker,
25 attorney or advocate.

26 5. To request a court hearing for a court to determine ~~if~~ WHETHER
27 the child has the capacity to consent to medical care that is directly
28 related to an illness, disease, deformity or other physical malady.

29 6. To receive help with obtaining a driver license, social security
30 number, birth certificate or state identification card and credit reports
31 with assistance in interpreting the reports and resolving inaccuracies in
32 the report. The foster parent shall have discretion to determine ~~if~~
33 WHETHER the child is responsible and mature enough to become a licensed
34 driver.

35 7. To receive necessary personal information within thirty days
36 after leaving foster care, including the child's birth certificate,
37 immunization records and information contained in the child's education
38 portfolio and health passport.

39 8. To participate in or reenter extended foster care when the child
40 is at least eighteen and under twenty-one years of age pursuant to section
41 8-521.02.

42 C. The department shall provide information regarding a child's
43 rights pursuant to this section and assistance in understanding and
44 enforcing these rights to each child who enters foster care or kinship
45 foster care or when there is a change in the child's foster care plan.
46 The information shall also include the telephone number and email address
47 of the department, the child's assigned case manager, the department's

1 office of the ombudsman and the ombudsman-citizens aide. A copy of these
2 rights shall be posted in a conspicuous place in all foster ~~care~~ HOMES and
3 group FOSTER homes.

4 D. If a child who is in foster care or kinship foster care believes
5 that the child's rights under this section have been violated, the child
6 or the child's representative may:

7 1. File a complaint with the department, the department's office of
8 the ombudsman or the ombudsman-citizens aide pursuant to section 41-1376.
9 A formal grievance may be initiated with the ombudsman at any time.

10 2. Notify the juvenile court in the child's ongoing dependency,
11 severance or adoption proceeding, either orally or in writing, that the
12 child's rights are being violated and request appropriate equitable
13 relief. The court shall act on the notification as necessary within ~~its~~
14 THE COURT'S discretion to promote the best interest of the child.

15 E. The rights provided in this section do not establish an
16 independent cause of action.

17 Sec. 2. Section 8-530.06, Arizona Revised Statutes, is amended to
18 read:

19 8-530.06. Group foster homes; employees; random drug
20 screening

21 A. The department shall develop and implement policies and
22 procedures to conduct random quarterly drug screening of employees of a
23 group foster home. The drug screening policies and procedures shall
24 comply with title 23, chapter 2, article 14.

25 B. An employee of a group foster home may not have contact with any
26 child living at the group foster home before an initial drug screening.

27 C. The department may conduct random drug screening of any group
28 foster home employee if the employee is involved in an accident or
29 incident in which a child ~~that~~ WHO lives at the group foster home is
30 injured. A group foster home shall submit the results of all random drug
31 screening to the department within forty-eight hours after receiving the
32 drug screening results.

33 D. THE DEPARTMENT SHALL TERMINATE A GROUP FOSTER HOME EMPLOYEE WHO
34 RECEIVES A POSITIVE DRUG SCREENING RESULT FROM EMPLOYMENT WITH THE GROUP
35 FOSTER HOME.

36 Sec. 3. Section 8-530.08, Arizona Revised Statutes, is amended to
37 read:

38 8-530.08. Congregate care; assessment; plans; definitions

39 A. Within thirty days after placing a child in a congregate care
40 setting, the department shall do the following:

41 1. Work with the child, if developmentally appropriate, the child's
42 attorney and the child's family and service team to do both of the
43 following:

44 (a) Establish a plan to place ~~a~~ THE child in an appropriate
45 family-like setting. The plan shall be specific to the child and, if
46 applicable, the child's siblings and the child's minor parent or parents.
47 The plan shall include steps to identify and recruit an appropriate

1 family-like setting for the child. In developing the plan, the department
2 shall identify and consider the placement preferences of the child.

3 (b) As part of the plan established pursuant to subdivision (a) of
4 this paragraph, develop a child-specific congregate care implementation
5 plan to ensure that the child's needs are appropriately met while the
6 child is placed in a congregate care setting.

7 2. Conduct an on-site visit of a group home within forty-eight
8 hours after placing a medically complex child in a group home to ensure
9 that all staff members who will have contact or care responsibilities for
10 a medically complex child have proper training.

11 3. Document both of the following in the child's case plan:

12 (a) The plan for placement of ~~a~~ THE child in an appropriate
13 family-like setting and the child-specific congregate care implementation
14 plan pursuant to paragraph 1, ~~subdivisions (a) and (b)~~ of this subsection.

15 (b) The results and findings of the group home on-site ~~survey~~
16 VISIT, if applicable, pursuant to paragraph 2 of this subsection.

17 B. For the purpose of this section:

18 1. "Family and service team" includes any of the following:

19 (a) Coaches.

20 (b) Court appointed special advocates.

21 (c) Department employees.

22 (d) Former foster caregivers.

23 (e) Mentors.

24 (f) Teachers.

25 (g) A DESIGNATED ADVOCATE.

26 ~~(g)~~ (h) Any other individuals who have knowledge of the child.

27 2. "Medically complex child" means a child who the department has
28 determined has or is at risk for a chronic physical or developmental
29 condition and who requires health-related services beyond the
30 health-related services that are required by a child in general.

31 Sec. 4. Title 8, chapter 4, article 4, Arizona Revised Statutes, is
32 amended by adding section 8-530.10, to read:

33 8-530.10. Group foster homes; safety; employee screening;
34 rules; policies; procedures

35 THE DEPARTMENT SHALL DEVELOP AND IMPLEMENT RULES, POLICIES AND
36 PROCEDURES IN GROUP FOSTER HOMES THAT DO ALL OF THE FOLLOWING:

37 1. REQUIRE COMPREHENSIVE BACKGROUND CHECKS THAT INCLUDE A COMPLETE
38 CRIMINAL HISTORY CHECK, SUBSTANCE USE SCREENING AND VERIFICATION OF
39 REFERENCES FOR ALL GROUP FOSTER HOME EMPLOYEES.

40 2. REQUIRE MANDATORY TRAINING IN TRAUMA-INFORMED CARE, MENTAL
41 HEALTH CRISIS MANAGEMENT AND FIRST AID FOR ALL GROUP FOSTER HOME
42 EMPLOYEES.

43 3. PROHIBIT GROUP FOSTER HOME EMPLOYEES FROM CARRYING WEAPONS OR
44 USING PERSONAL CELL PHONES WHILE THE EMPLOYEE IS AT THE GROUP FOSTER HOME.

45 4. ESTABLISH MECHANISMS FOR REPORTING STAFF MISCONDUCT OR NEGLECT.

1 5. REQUIRE THE GROUP FOSTER HOME TO DOCUMENT AND VERIFY THAT A
2 CHILD WHO IS LIVING IN A GROUP FOSTER HOME ATTENDS MEDICAL AND MENTAL
3 HEALTH CARE APPOINTMENTS.

4 6. ESTABLISH REPORTING AND FOLLOW-UP POLICIES TO PREVENT MEDICAL
5 NEGLECT AND ENSURE THE CONTINUITY OF CARE FOR A CHILD WHO IS LIVING IN A
6 GROUP FOSTER HOME.

7 Sec. 5. Title 36, chapter 10, article 1, Arizona Revised Statutes,
8 is amended by adding section 36-1202, to read:

9 36-1202. Juvenile group homes; resident safety; policies;
10 rules; procedures; definitions

11 A. THE DEPARTMENT SHALL DEVELOP AND IMPLEMENT RULES, POLICIES AND
12 PROCEDURES FOR GROUP HOMES THAT DO ALL OF THE FOLLOWING:

13 1. REQUIRE MINIMUM SECURITY STANDARDS FOR GROUP HOMES THAT INCLUDE
14 ALL OF THE FOLLOWING:

15 (a) SECURE ENTRY AND EXIT.

16 (b) FUNCTIONAL LOCKS.

17 (c) MONITORED COMMON AREAS.

18 2. ESTABLISH TRAUMA-INFORMED SAFETY PROTOCOLS THAT PREVENT GROOMING
19 AND EXPLOITATION OF AND UNAUTHORIZED EXITS BY THE RESIDENTS.

20 3. ALLOW UNANNOUNCED INSPECTIONS AND INDEPENDENT AUDITS BY THE
21 GROUP HOME'S LICENSING AUTHORITY.

22 4. ESTABLISH TECHNOLOGY POLICIES THAT LIMIT OR MONITOR TELEPHONE
23 USE BY RESIDENTS AND THAT PROVIDE APPROPRIATE SECURITY THROUGH THE USE OF
24 APPLICATIONS AND TECHNOLOGY.

25 5. PROHIBIT GROUP HOME EMPLOYEES FROM SHARING RESIDENTS PERSONAL
26 INFORMATION OR SCHEDULES.

27 B. FOR THE PURPOSES OF THIS SECTION, "GROUP HOME", "LICENSING
28 AUTHORITY" AND "RESIDENT" HAVE THE SAME MEANINGS PRESCRIBED IN SECTION
29 ~~[32-1201]~~ [36-1201].

30 Sec. 6. Short title

31 This act may be cited as the "Youth Safety, Rights and Mental Health
32 Protection Act".

33 Enroll and engross to conform

34 Amend title to conform

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